

June 15, 2026
Dept. 9
Probate Tentative Rulings

14.	24PR0084	THE MATTER OF THE VISMAN FAMILY REVOCABLE TRUST
Compel Trust Accounting		

On April 27, 2026, petitioner Brad Visman (“petitioner”) filed a petition seeking an order to: (1) compel trustees Michael Visman and Mark Visman (collectively, “trustees”) to account; (2) enjoin trustees from paying any further attorney fees from the trust estate absent court approval; (3) deny compensation of trustees; (4) remove trustees and appoint a professional fiduciary as trustee; (5) surcharge the trustees’ shares in the trust estate in an amount equal to the loss of value of the trust estate resulting from trustees’ alleged breach of trust, with interest; and (6) award attorney fees and costs incurred in bringing the instant petition.

With respect to accounting, the current trustees have been administering the Trust since the death of settlor Ruth Visman on October 15, 2023. Petitioner claims the trustees have failed to provide a code-compliant accounting. Petitioner alleges he first requested an accounting from the trustees in petitioner’s April 2, 2024, petition for instructions. Thereafter, on July 17, 2024, and again on May 29, 2025, petitioner issued additional written requests for accountings. On April 8, 2025, the trustees provided a “preliminary accounting.” In their objection to the instant petition, the trustees indicated that the only missing or incomplete item relates to the transfer of property to petitioner. The trustees stated they anticipated providing the updated accounting to petitioner “within weeks.” Pursuant to Probate Code section 16061, the court orders the trustees to serve a code-compliant accounting upon petitioner (covering the period of October 15, 2023, through the date of the court’s order) within 30 days of the notice of entry of order.

With respect to all other issues in the instant petition, the court finds good cause to continue the hearing to September 21, 2026, to allow the court time to issue its final ruling on the April 2, 2024, petition for instructions, which was taken under submission as of May 1, 2026. The court held a seven-day trial on the matter in late 2025, issued a tentative ruling on March 19, 2026, and allowed the parties to file objections and/or responses to the court’s tentative ruling. With the exception of the request for accountings, the issues in the instant petition are largely dependent on the court’s findings on the April 2, 2024, petition for instructions.

TENTATIVE RULING #14: THE COURT ORDERS THE TRUSTEES TO SERVE A CODE-COMPLIANT ACCOUNTING UPON PETITIONER (COVERING THE PERIOD OF OCTOBER 15, 2023, THROUGH THE DATE OF THE COURT’S ORDER) WITHIN 30 DAYS OF THE NOTICE OF ENTRY OF ORDER. WITH RESPECT TO ALL REMAINING ISSUES IN THE INSTANT PETITION, THE COURT CONTINUES THE MATTER TO 8:30 A.M., MONDAY, SEPTEMBER 21, 2026, IN DEPARTMENT NINE. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).